

File No.: 11.17.001.009.127

Decision

Complaint against

regarding the right of access

Regarding the above complaint filed on behalf of XXX (hereinafter referred to as the "complainant") at my Office on June 9, 2021, I inform you of the following:

A) Incident

2.1. As stated by the complainant, on January 25, 2021, she sent an email via the email address XXX to the addresses @101investing.com and S@101investing.com, where she requested that you provide her with all personal data concerning her and processed by FXBFI Broker Financial Invest Ltd (hereinafter referred to as the "Company") under Article 15 of the General Data Protection Regulation (GDPR). Specifically, she also requested all correspondence and telephone recordings exchanged with the Company's staff.

2.2. In response to her request, she was asked to complete the relevant form and submit the request according to the instructions in the privacy policy.

2.3. On February 8, 2021, the complainant resent her request to the email address dpo@101investing.com and attached the relevant completed form, in accordance with your previous instructions. Despite this, the complainant claims that she did not receive any response within the legal deadline of 1 month and therefore sent 2 reminders on March 1 and March 16, 2021.

2.4. On March 19, 2021, following the above correspondence, the Company responded to her reminders and informed her that it would fulfill her request, and subsequently sent her another message on March 23, 2021, providing her with the information she requested.

2.5. The complainant replied to that message on March 29, 2021, claiming that her request was not fully satisfied, as the telephone recordings she explicitly requested were not sent to her. Subsequently, after not receiving a response to her message of March 29, she sent 2 more reminders on April 15 and June 7, 2021. Nevertheless, she did not receive any further response from the Company.

3.1. When my Office received the complaint, it contacted the Company via email on September 6, 2021, and requested its views on the above and the reasons for:

- a. the incomplete satisfaction of the request by not providing the complainant with the telephone recordings she requested, and
- b. the lack of response to the complainant's request on March 29, 2021.

3.2. On October 6, 2021, the Data Protection Officer (DPO) of the Company communicated to my Office the relevant correspondence between the Company and the complainant and stated that he would prepare a response with his views.

3.3. My Office, having not received a response, sent reminders and warnings to the Company via email on December 6, 2021, and February 16, 2022, regarding a potential violation of Article 31 of the GDPR for non-cooperation with my Office.

3.4. On February 17, 2022, the DPO responded that the relevant correspondence from my Office was lost due to some technical issues and staff changes during the pandemic and assured that he would get back within a few days. Nevertheless, my Office did not receive a response again and followed up with a final warning on May 23, 2022.

3.5. On May 27, 2022, my Office received a letter from the Executive Director of the Company who stated the following:

- a. He apologized for the lack of response to my Office's emails dated December 6, 2021, and February 16, 2022, which had been categorized by the system as spam.
- b. He confirmed the complainant's claims as stated in paragraphs 2.1-2.4 above.
- c. He admitted that the attempt to fully satisfy the access request was unsuccessful due to

organizational changes in the Company regarding the role of the DPO, and the inadvertent omission of the Company to provide the complainant with the relevant telephone recordings.

d. He clarified that, upon receiving my Office's letter on May 23, 2022, the Company contacted the relevant service provider but was unable to retrieve the said telephone recordings due to the fact that the provider is based in Ukraine and communication with them has been lost amid the ongoing conflict. Nevertheless, he expects that communication with the provider will be restored and therefore the Company will attempt again to retrieve the said data.

3.6. On November 15, 2022, my Office sent a new email to the Company requesting the following:

- a. An update on whether the telephone transcripts have been received from the service provider and have been communicated to the complainant.
- β. The relevant service provision contract and/or the data processing agreement with the aforementioned service provider.
- γ. Relevant evidence that the processing of telephone recordings is carried out by the provider on behalf of the Company and that it is unable to retrieve the data.

3.7. In his response dated 24/11/2022, the Executive Director of the Company stated that, although efforts to communicate with the provider continued, it became impossible as the war situation in Ukraine forced the business to cease operations, and therefore the Company believes it has exhausted all possible avenues for retrieving the telephone recordings.

4. On 24/02/2023, I issued a preliminary Decision against the Company for violation of Articles 12(3), 15, and 31 of the Regulation, as:

- a. it did not provide the complainant with information regarding the action taken in response to the request under Article 15 within one month,
- b. it did not satisfy part of the request, specifically the telephone recordings, and
- c. it did not respond to the letters from my Office within the deadlines.

It was also requested that the reasons be stated as to why the Company believes that no corrective measure or administrative sanction should be imposed, as well as any mitigating factors that it believes should be taken into account before the issuance of a Decision.

5. In the response letter dated 17 March 2023, the Executive Director of the Company mentioned the following mitigating factors:

- α. The complainant initially did not follow the procedure outlined in the Company's data protection policy and in January 2021 sent the access request to an email address that is not used for fulfilling requests related to personal data.
- β. The DPO partially satisfied the complainant's request on 23 March 2021.
- γ. Due to multiple organizational changes, which specifically affected the position of the Compliance and Data Protection Officer, there were delays in fully satisfying the complainant's request.
- δ. Despite ongoing efforts, communication with the provider for the retrieval of the telephone recordings has not been possible.
- ε. The Company voluntarily relinquished its operating license in March 2022 and has ceased all its services. As a result, it has not received any revenue since then and employs only 1 person.

B) Legal Aspect

6. Article 12(3) of the GDPR states that "The controller shall provide the data subject with information on the action taken in response to a request under Articles 15 to 22 without undue delay and in any event within one month of receipt of the request. This period may be extended by two further months where necessary, taking into account the complexity of the request and the number of requests. The controller shall inform the data subject of any such extension within one month of receipt of the request, together with the reasons for the delay."

7. Article 31 of the GDPR refers to the obligation of the controller and the processor, and where applicable, their representatives to cooperate, on request, with the supervisory authority in the performance of its tasks.

8. Article 58(1) of the GDPR states that “Each supervisory authority shall have all of the following investigative powers: a) to order the controller and the processor, and where applicable, the representative of the controller or the processor to provide any information it requires for the performance of its tasks...”

9. According to Article 83(4)(a) of the GDPR, violations of the provisions of Article 31 may result in administrative fines of up to 10,000,000 EUR or, in the case of undertakings, up to 2% of the total worldwide annual turnover of the preceding financial year, whichever is higher.

10. According to Article 83(5)(b) of the Regulation, violations of the provisions of Article 12 may result in administrative fines of up to 20,000,000 EUR or, in the case of undertakings, up to 4% of the total worldwide annual turnover of the preceding financial year, whichever is higher.

****C) Reasoning****

11. As I have mentioned in my Preliminary Decision, the complainant followed the instructions of the DPA and resubmitted her access request on February 8, 2021, and received a response on March 19. Therefore, I found a violation of Article 12(3) of the GDPR since more than one month had passed. It should be noted, however, that her initial request on January 25, 2021, should have been sufficient to initiate the process of fulfillment by the DPA regardless of whether she had completed the predetermined form. Additionally, as stated in the guidelines of the European Data Protection Board (Guidelines 01/2022 on data subject rights - Right of access), the data controller is not entitled to extend the response period to a request simply because the data subject has sent a request to the general email address of the data controller and not to the email address of the data controller's contact point for data protection.

12. I also reiterate that although the inability to retrieve the phone records from the provider due to the war situation in Ukraine was taken into account, the complainant's request had been submitted a year prior to this situation, and this delay is not justified. Therefore, I found a violation of Article 15 of the GDPR for the failure to fulfill the access request to the phone records.

13. Furthermore, I understand that organizational changes in the role of the DPA caused delays in responding to requests from my Office; however, this is not justified as multiple reminders had been sent, and thus I found a violation of Article 31 of the GDPR.

****D) Conclusion****

14. Consequently, taking into account all the above elements as presented, and based on the powers conferred upon me by Articles 58 and 83 of Regulation (EU) 2016/679, Article 24(b) of Law 125(I)/2018, I find that there is a prima facie violation by the company FXBFI Broker Financial Invest Ltd of Articles 12(3), 15, and 31 of the GDPR.

15. Therefore, having established a violation of Articles 12(3), 15, and 31 of GDPR 2016/679, as explained above, based on the provisions of Article 83 of the GDPR, insofar as they apply to the specific case, I take into account the following mitigating (1-3) and aggravating (4-6) factors:

1. The fact that the requested phone records could have been retrieved by the provider before the onset of the war in Ukraine.
2. The failure to fulfill the access request regarding the phone records.
3. The delay in the Company's response to my Office's letters.
4. The delay in the DPA's response to the access request was not significant (11 days).
5. Although it is now impossible to retrieve the phone records, the remainder of the complainant's request has been fulfilled.
6. The Company has not been active since March 2022 and has had no revenue since then.

16. Having regard to the above and based on the powers conferred upon me by Articles 58 and 83 of the GDPR, I have decided to issue a reprimand to FXBFI Broker Financial Invest Ltd. In the event of a recurrence of a similar violation within 12 months from today, this Decision may be taken into account against the said company.

****Eirini Loizidou Nikolaidou****

****Commissioner for Personal Data Protection****